

DRAFT FOR CONSULTATION

Broadcasting (Disestablishment of Broadcasting Standards Authority) Amendment Bill

Member's Bill

Explanatory note

General policy statement

New Zealand's broadcasting standards regime was designed in the late 1980s for a world of a few television channels and radio stations. Today's media environment could not be more different. News and entertainment now flow through countless digital, on-demand, and social platforms, many of which operate beyond the reach of the Broadcasting Standards Authority (BSA).

The BSA's remit has expanded far beyond its original purpose, while its relevance to the modern media landscape has diminished. The same content rules do not apply across platforms, and attempts to retrofit 20th-century regulation onto 21st-century media have produced regulatory creep. An authority originally meant to uphold standards in scheduled broadcasting now routinely opines on expression, taste, and decency in a fragmented digital environment.

This Bill recognises that the BSA model is no longer fit for purpose. It disestablishes the Authority and removes associated statutory provisions from the Broadcasting Act 1989 and related enactments.

The Broadcasting (Disestablishment of Broadcasting Standards Authority) Amendment Bill is therefore a necessary modernisation. It clears away a legacy institution that has outlived its usefulness, ensures consistency across all forms of media, and affirms that New Zealanders can be trusted to make their own judgments in a free society.

Clause by clause analysis

Clause 1 is the Title clause.

Clause 2 is the commencement clause and provides for this Bill to come into force 6 months after Royal assent.

Part 1

Amendment to Broadcasting Act 1989

Clause 3 provides that *Part 1* amends the Broadcasting Act 1989.

Clause 4 repeals Part 3 of the Act, which establishes the Broadcasting Standards Authority and contains provisions relating to it.

Part 2

Consequential amendments

Clause 5 and the *Schedule* provide for consequential amendments to implement the policy of the Bill.

Laura McClure

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Contents

		Page
1	Title	1
2	Commencement	1
Part 1		
Amendment to Broadcasting Act 1989		
3	Principal Act	2
4	Part 3 repealed	2
Part 2		
Consequential amendments		
5	Consequential amendments	2
Schedule		
Consequential amendments to enactments		

The Parliament of New Zealand enacts as follows:

1 Title

This Act is the Broadcasting (Disestablishment of Broadcasting Standards Authority) Amendment Act **2025**.

2 Commencement

This Act comes into force 6 months after Royal assent.

Part 1
Amendment to Broadcasting Act 1989

3 Principal Act

This Part amends the Broadcasting Act 1989.

4 Part 3 repealed

Repeal Part 3.

Part 2
Consequential amendments

5 Consequential amendments

Amend the legislation specified in the **Schedule** as set out in that Schedule.

Schedule

Consequential amendments to enactments

s 5

Broadcasting Act 1989 (1989 No 25)

In the Long Title, repeal paragraph (b).

In section 2(1), repeal the definition of **Authority**.

Repeal section 7(3).

Repeal sections 8 to 19A.

In the Schedule 1 heading, delete “Broadcasting Standards Authority and”.

In Schedule 1, clause 8, after “for any members of the” delete “Authority or the”.

Criminal Procedure Act 2011 (2011 No 81)

In section 198(2)(a)(ii), after “complaints procedure of the”, delete “Broadcasting Standards Authority or the”.

In section 210(1)(a)(ii), after “complaints procedure of the”, delete “Broadcasting Standards Authority or the”.

Crown Entities Act 2004 (2004 No 115)

In Schedule 1, Part 3, repeal the item relating to the Broadcasting Standards Authority.

Films, Videos, and Publications Classification Act 1993 (1993 No 94)

In section (2), the definition of **commercial video on-demand**, paragraph (a), replace “; but” with“.”.

In section (2), the definition of **commercial video on-demand**, repeal paragraph (b).

Official Information Act 1982 (1982 No 156)

In Schedule 1, repeal the item relating to the Broadcasting Standards Authority.

Ombudsmen Act 1975 (1975 No 9)

In Schedule 1, Part 2, repeal the item relating to the Broadcasting Standards Authority.

Privacy Act 2020 (2020 No 31)

In section 7(1), definition of **news entity**, repeal paragraph (b)(i).